

23VECV03137 23VECV03137

County: los-angeles

Division: Civil Law and Motion

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Case Number: 23VECV03137 Hearing Date: September 9, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

ANDASOL, LLC, a California Limited Liability Company; FURNITUREWALA,
LP,

Plaintiffs,

vs.

GL CONSTRUCTION PROJECT MANAGEMENT,
INC.; KACIE A. PLOUFF, individually and d.b.a. CHRISTENSEN & PLOUFF; DOES
1 through 100.

Defendants.

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CASE NO.: 23VECV03137

C/W: 25VECV03960

ORDER

OVERRULING DEFENDANTS KACIE A.

PLOUFF, INDIVIDUALLY AND DBA CHRISTENSEN & PLOUFF; BOYD CHRISTENSEN,
INDIVIDUALLY AND DBA CHRISTENSEN & PLOUFF'S DEMURRER

GL CONSTRUCTION PROJECT

MANAGEMENT, INC., a California

corporation,

Cross-Complainants,

vs.

ANDASOL, LLC, a California Limited

Liability Company; KACIE A. PLOUFF,

individually and d.b.a.

CHRISTENSEN & PLOUFF; and DOES 1 THROUGH 100,
inclusive,

Cross-Defendants.

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KACIE A PLOUFF, individually and d.b.a. CHRISTENSEN
& PLOUFF,

Cross-Complainant,

vs.

GL CONSTRUCTION PROJECT MANAGEMENT, INC. and ROES 1
through 50, inclusive,

Cross-Defendants.

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GUY LAHAV, an individual,

Plaintiff,

vs.

KACIE A. PLOUFF, individually and doing business as
CHRISTENSEN & PLOUFF; BOYD CHRISTENSEN, individually and doing business
as CHRISTENSEN & PLOUFF; and DOES 1 through 100, inclusive,

Defendants.

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I.

BACKGROUND

In Case No. 23VECV03137, Plaintiffs Andasol, LLC ("Andasol") and Furniturewala, LP ("Furniturewala") (collectively, "Plaintiffs") hired GL Construction Project Management ("GL Construction") as general contractor for the construction of five homes in Encino, California. GL Construction retained Kacie A. Plouff d.b.a. Christensen & Plouff ("Plouff"), a land surveyor, to survey the properties where the homes would be built. Andasol and Furniturewala allege Plouff inaccurately staked the locations for two homes using inapplicable setback requirements. Andasol and Furniturewala allege GL Construction proceeded to build the homes without first obtaining the requisite inspections by the City of Los Angeles Department of Building and Safety ("LADBS"). Andasol and Furniturewala allege they incurred a loss after having to tear down two homes built with incorrect setbacks and rebuild them at the correct locations.

On March 13, 2026, the Court deemed this action, Case No. 23VECV03137, and Case No. 25VECV03960 related.

On April 30, 2026, the Court consolidated Case Nos. 23VECV03137 and 25VECV03960. The Court designated 23VECV03137 as the lead case.

In Case No. 25VECV03960, Plaintiff Guy Lahav

("Lahav") brings a single cause of action for breach of contract against Kacie A. Plouff, individually and dba Christensen & Plouff, and Boyd Christensen, individually and dba Christensen & Plouff, arising from their July 2021 staking of two residences at 17340 and 17341 West Amina Place, which required the demolition and reconstruction of the two partially built homes.

Kacie A. Plouff, individually and dba Christensen & Plouff, and Boyd Christensen, individually and dba Christensen & Plouff, demur to the FAC.

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II. PROCEDURAL HISTORY

On July 20, 2023, Andasol and Furniturewala filed a Complaint against Defendants GL Construction and Plouff for (1) Breach of Contract and (2) Negligence.

On December 1, 2023, GL Construction filed a Cross-Complaint against Andasol, LLC and Plouff for (1) Declaratory Relief and (2) Breach of Contract.

On January 1, 2024, Plouff filed a Cross-Complaint against GL Construction for (1) Implied Indemnity; (2) Equitable Indemnity; (3) Apportionment/Contribution; and (4) Declaratory Relief.

On April 29, 2024, Andasol and Furniturewala designated Boyd Christensen ("Christensen") as "Doe 1."

On July 12, 2024, Plouff and Christensen filed a First Amended Cross-Complaint for (1) Implied

Indemnity; (2) Equitable Indemnity; (3) Apportionment/Contribution; and (4) Declaratory Relief.

On July 31,
2024, Plouff designated Chris Brown, individually and d.b.a. Qualified Development and Management, LLC as “Roe 1.”

On July 14,
2025, the Court denied GL Construction’s Motion for Leave to File a First Amended Cross-Complaint (“FAXC”). The Court also granted Kacie A. Plouff, individually and doing business as Christensen & Plouff, and Boyd Christensen’s Motion for Determination of Good Faith Settlement. The Court accordingly dismissed GL Construction’s Cross-Complaint filed on December 1, 2023, with prejudice pursuant to Code Civ. Proc. § 877.6(c) as to GL Construction’s claim for declaratory relief (indemnity and contribution) against Kacie A. Plouff, individually and doing business as Christensen & Plouff.

On July 16,
2025, in Case No. 25VECV03960, Plaintiff Guy Lahav (“Lahav”) filed a Complaint against Kacie A. Plouff, Christensen & Plouff, Boyd Christensen individually and doing business as Christensen & Plouff alleging (1) Breach of Contract.

On September
18, 2025, the Court granted Andasol’s Request for Dismissal as to Kacie A. Plouff, individually and doing business as Christensen & Plouff, and Boyd Christensen.

On January
30, 2026, the Court granted GL Construction’s Motion for Leave to Amend to File a First Amended Cross Complaint (“FAXC”).

On February
6, 2026, GL Construction filed a FAXC alleging (1) Breach of Contract [1st Project Contract]; (2) Breach of Contract [2nd Project Contract]; (3) Breach of Contract [Street Works Contract]; (4) Cause of Action Against Surety On Mechanic’s Lien Release Bond; (5) Negligence; (6) Inducing Breach of Contract; and (7) Intentional Interference with Contractual Relations.

On February

19, 2026, in Case No. 23VECV03137, the Court granted the parties' stipulation for Plaintiffs to file a First Amended Complaint.

On February

20, 2026, Andasol

and Furniturewala filed a FAC alleging (1) Breach of Contract; (2) Negligence; (3) Breach of Contract; (4) Breach of Implied Warranty; And (5) Negligence-Construction Defect.

On March 13,

2026, the Court deemed this action and Case No. 25VECV03960 related.

On April 30,

2026, the Court consolidated Case Nos. 23VECV03137 and 25VECV03960. The Court designated 23VECV03137 as the lead case.

On May 28,

2026, the Court sustained Defendants Kacie A. Plouff and Boyd Christensen's demurrer to Lahav's Complaint with leave to amend.

On June 16,

2026, in Case No. 23VECV03137, Lahav filed a First Amended Complaint alleging (1) Breach of Contract.

On July 20,

2026, Kacie A. Plouff, individually and dba Christensen & Plouff, and Boyd Christensen, individually and dba Christensen & Plouff, (jointly "Plouff Defendants") filed the instant Demurrer.

On August 31,

2026, Plaintiff filed an Opposition.

On September

1, 2026, Plouff Defendants filed a Reply.

III.

MEET AND CONFER

Before filing

a demurrer or motion to strike, the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer or motion to strike for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer or motion to strike. (See Code Civ. Proc. § 430.41(a), §435.5(a).) A declaration must be filed with a demurrer regarding the results of the meet and confer process. (See Code Civ. Proc. § 430.41(a)(3).)

Plouff

Defendants' counsel, David Daftary, attests he met and conferred by letter and email with Lahav's counsel. (See Declaration of David M. Daftary filed July 20, 2026, ¶¶ 5-6.) Daftary attests Lahav's counsel declined to meet and confer by telephone stating it was not necessary and provided his counter arguments by email instead. (See *id.*) The Court finds Plouff Defendants complied with their meet and confer obligation. However, the Court reminds counsel it expects them to cooperate with requests to meet and confer in person, by telephone, or by video conference. Exchanging letters and emails is insufficient and could be grounds for denying the relief sought or sanctions.

IV.

LEGAL STANDARD

A demurrer

may be brought if insufficient facts are stated to support the cause of action asserted. (See Code Civ. Proc. § 430.10(e).)[1] “[T]he court gives the complaint a reasonable interpretation, and treats the demurrer as admitting all material facts properly pleaded.” (Id.) Allegations are to be liberally construed. (See Code Civ. Proc. § 452.) In testing the sufficiency of the complaint, the court must assume the truth of (1) the properly pleaded factual allegations; (2) facts that can be reasonably inferred from those expressly pleaded; and (3) judicially noticed matters. (See *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. (See *SKF Farms v. Superior Court* (1984) 153 Cal.App.3d 902, 905.) A demurrer can only be sustained when it disposes of an entire cause of action. (See *Poizner v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119; *Kong v. City of Hawaiian Gardens Redev. Agency* (2003) 108 Cal.App.4th 1028, 1046.)

A demurrer

may be brought if the pleading is uncertain, ambiguous, or unintelligible. (See Code Civ. Proc. § 430.10(f).) “A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (Khoury v. Maly’s of California, Inc. (1993) 14 Cal.App.4th 612, 616.) As a result, a special demurrer for uncertainty is not intended to reach failure to incorporate sufficient facts in the pleading but is directed only at uncertainty existing in the allegations already made. (See People v. Taliaferro (1957) 149 Cal.App.2d 822, 825.) Where complaint is sufficient to state a cause of action and to apprise defendant of issues he is to meet, it is not properly subject to a special demurrer for uncertainty. (See id.; see also Gressley v. Williams (1961) 193 Cal.App.2d 636, 643 [“[a] special demurrer [for uncertainty] should be overruled where the allegations of the complaint are sufficiently clear to apprise the defendant of the issues which he is to meet”].)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the complainant to show the Court a pleading can be amended successfully. (See id.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245.)

V.

JUDICIAL NOTICE

The Court

grants Plouff Defendants’ request for judicial notice of records in this action.

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VI.

ANALYSIS

Plouff

Defendants demur to Lahav’s FAC on three grounds. First, Plouff Defendants argue the gravamen of Lahav’s breach of contract claim is professional

negligence and because the alleged conduct occurred in 2021, it is barred by the two-year statute of limitations under Code of Civil Procedure § 339(1). They argue the claim is also barred under the three-year statute of limitations for damage or injury to property under § 338. (See Dem. at 8:16-28.) Plouff Defendants anticipate Lahav will rely on *L.B. Laboratories, Inc. v. Mitchell* (1952) 39 Cal.2d 56, 62-63, which Plouff Defendants argue is misplaced; they argue that case applied the contract limitations period because the defendant did not perform the contracted work at all. (See id., at 7:21-8:2.)

Second, Plouff Defendants argue Lahav's claims as assignee of GLCPM fail as a matter of law because those claims were barred and dismissed with prejudice after the Court granted Plouff Defendants' good faith settlement determination in the consolidated action. (See id., at 10:7-21, 11:16-20.) Plouff Defendants argue although the FAC alleges it disclaims recovery of comparative indemnity or contribution, the damages sought are clearly for indemnity. (See id., at 10:22-11:6, 11:2-6.) Third, Plouff Defendants argue the FAC remains uncertain as to Lahav's individual damages. (See id., at 12:4-18.)

In opposition,

Lahav argues this action is founded on a written instrument and is thus governed by the four-year limitations period in Code of Civil Procedure § 337. (See Opp. at 3:22-24.) Lahav argues *L.B. Laboratories*, 39 Cal.2d at 62-63, holds where a party contracts to do a specific thing, the party's duty is not limited to exercise of ordinary care and the breach is a breach of contract. (See Opp. at 7:2-3.) Additionally, Lahav argues a limitations demurrer lies only where the complaint shows on its face that the claim is necessarily barred, and the FAC here pleads a timely written-contract claim. (See id., at 8:12-16.) Next, Lahav argues the FAC expressly disclaims indemnity and contribution and appropriately seeks GLCPM's out-of-pocket demolition and reconstruction costs. (See id., at 9:1-14, citing *Cal-Jones Properties v. Evans Pacific Corp.* (1989) 216 Cal.App.3d 324.) Finally, Lahav argues the FAC is not uncertain as he pleads his individual damages "according to proof" and in any event, a breach of contract entitles a plaintiff to at least nominal damages. (See Opp. at 11:22-25.)

In reply,

Plouff Defendants reassert the claim is time-barred. Plouff Defendants argue because they were hired to perform a professional service measured by the exercise of skill and care and did not guarantee a defined result, *L.B. Laboratories* instructs the claim lies in negligence. (See Reply at 3:1-14.) Plouff Defendants next argue to the extent Lahav sues as the assignee of GLCPM for

\$486,442.39 it incurred in corrective construction costs, that claim was time-barred before it was assigned and is independently barred by the Court's July 2025 good faith settlement determination. (See Reply at 7:23-28, 8:1-10.) Third, the FAC remains uncertain as to any damages Lahav sustained in his individual capacity. (See *id.*, at 8:14-18.)

First, the

Court finds the claim is governed by the four-year statute of limitations as applicable to breach of contract claims. (See Code Civ. Proc. § 337(a).)

"[N]egligence may be conceived as being of two types: delictual negligence, which involves a breach of a duty owed to a world at large...and contractual negligence, which consists of a breach of a primary duty owed to the injured party—a 'polarized' duty arising from some prior relationship between him and the tortfeasor...The latter type of negligence ordinarily gives rise to an action either on contract or in tort, and the injured party may at his election waive the contract and sue in tort, or waive the tort and base his action on the contract alone." (L.B. Laboratories, 39 Cal.2d 56 at 62.) "In general, however, actions based on negligent failure to perform contractual duties, such as those owing from a hospital or physician to a patient...although containing elements of both contract and tort, are regarded as delictual actions, since negligence is considered the gravamen of the action [physicians do not agree to achieve a particular result they just agree to act in a nonnegligent manner]...Even in the physician cases it would not be doubted that if a doctor is specifically employed to remove a wart from the patient's foot but removes one from his face, there would be a breach of contract." (*Id.*, at 62-63.)

"California

has also recognized the fundamental principle that "[a]ccompanying every contract is a common-law duty to perform with care, skill, reasonable expedience, and faithfulness the thing agreed to be done, and a negligent failure to observe any of these conditions is a tort, as well as

a breach of the contract.' The rule which imposes this duty is of universal application as to all persons who by contract undertake professional or other business engagements requiring the exercise of care, skill and knowledge; the obligation is implied by law and need not be stated in the agreement [citation]." (North Am. Chemical Co. v. Superior Court (1997)

59 Cal.App.4th 764, 774.) "A contract to perform services gives rise to a duty of care which requires that such services be performed in a competent and reasonable manner. A negligent failure to do so may be both a breach of contract and a tort. In such a hybrid

circumstance, the plaintiff is entitled to pursue both legal theories until an occasion for an election of remedies arises. (Id., citing *Perry v. Robertson* (1988) 201 Cal.App.3d 333, 340, 347 [citations omitted].)

Here, the FAC alleges Plouff Defendants contracted to do a specific thing, namely, accurately perform a staking survey based on the operative plans. The staking survey included the tasks of calculating property lines, setting stakes, and preparing a map. (See FAC, ¶¶ 12-13, 19.) The FAC alleges Plouff Defendants incorrectly staked the property because they “set the stakes at the locations depicted on the superseded May 2020 plans...” (Id., ¶ 21.) The Court finds that employing Plouff Defendants to conduct a staking survey was not limited to their exercise of ordinary care; Plouff Defendants’ did not just agree to act in a nonnegligent manner. Rather, Plouff Defendants agreed to achieve a desired result, namely an accurately staked property based on operative plans. (See *L.B. Laboratories*, 39 Cal.2d 56 at 63.) Moreover, Plouff Defendants’ duty owed to the injured party arose from the parties’ contract, not from any general duty owed by Plouff Defendants to the public. (See id., at 62; *North American Chemical Co.*, 59 Cal.App.4th at 774.) Accordingly, Lahav may base his action on the contract.

Even accepting Plouff Defendants’ argument they were engaged to perform a professional service measured by the exercise of skill and care, Lahav is entitled to pursue either a breach of contract or a negligence claim. (See *North Am. Chemical Co.*, 59 Cal.App.4th at 774.) Thus, Lahav’s FAC, which was filed on July 16, 2025, is not barred under the four-year statute of limitations under § 337(a).

Next, from the face of the pleading, the Court finds Lahav, as assignee for GLCPM is not seeking damages for indemnity or contribution. A good faith settlement cuts off the right of other defendants to seek contribution or comparative indemnity from the settling defendant. (See *Goodman v. Lozano* (2010) 47 Cal.4th 1327, 1333; Code Civ. Proc. § 877.6(c).)[2] After the Court granted Plouff Defendants’ motion for determination of good faith settlement, the Court dismissed GLCPM’s Cross-Complaint filed on December 1, 2023, with prejudice pursuant to Code Civ. Proc. § 877.6(c) as to its claim for declaratory relief (indemnity and contribution). (See July 14, 2025, Order; Order of Dismissal filed July 14, 2025.) Here, the FAC alleges “Lahav does not seek...any equitable comparative contribution, or any partial or

comparative indemnity, based on comparative negligence or comparative fault, with respect to any sums GLCPM owes or may owe to the plaintiffs in the consolidated action” instead, “damages sought in this action are limited to...the direct, out-of-pocket costs of demolishing and reconstructing the two mislocated residences, costs that GLCPM presented to the Project’s owners in a written change order that the owners refused to approve or pay, and that GLCPM thereafter bore and absorbed itself...” (FAC, ¶ 2.) “These losses are distinct from, and do not include or overlap with, the unpaid contract balance that GLCPM seeks from the Andasol plaintiffs in GLCPM’s pending cross-complaint in the Andasol Action. The Owners expressly refused to bear these costs, and none of these sums constitutes, and Plaintiff does not seek by way of these sums, any amount that GLCPM owes or may owe to the Andasol plaintiffs or to any other party.” (Id., ¶ 30.) Thus, as pled, the amount Lahav seeks as GLCPM’s assignee is not an amount the plaintiffs in the related action sought from GLCPM, as they never incurred the cost in the first instance. Thus, the Court finds GLCPM’s breach of contract claim, brought by assignee Lahav, is not barred by § 877.6(c).

Finally, damages

are sufficiently pled as to Lahav in individual capacity. Damages are not a necessary element of a cause of action for breach of contract because nominal damages are available. (See *Midland Pacific Bldg. Corp. v. King* (2007) 157 Cal.App.4th 264, 275.) The Court previously found Lahav failed to allege the nature of his damages. (See May 28, 2026 Order at 5:24-25.) Here, the Court agrees with Lahav that he has at minimum pled nominal damages. The FAC alleges Lahav sustained foreseeable damages and prays for “compensatory damages in favor of Plaintiff in his individual capacity, in an amount according to proof at trial.” (See FAC, ¶ 33, prayer, ¶ 1.) Thus, the damages element is sufficiently alleged.

Thus, the

Court OVERRULES Plouff Defendants’ Demurrer.

VII.

CONCLUSION

Based on the

foregoing, the Court OVERRULES Plouff Defendants’ Demurrer. Plouff Defendants are ordered to file an answer only on or before September 21, 2026.

IT

IS SO ORDERED.

DATED: September 9, 2026

Hon. Michael R. Amerian

Judge,
Superior Court

[1] All statutory references
are to California codes unless stated otherwise.

[2] Additionally, a settling tortfeasor's §
877.6(c) good faith settlement determination discharges indemnity claims
by other tortfeasors, whether or not named as parties to the
action, provided they were given notice and an opportunity to be
heard. (See *Britz, Inc. v. Dow Chemical Co.* (1999) 73 Cal.App.4th
177, 183; see also *Gackstetter v. Frawley* (2006) 135 Cal.App.4th
1257, 1273.)